

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
JONATHAN ALVARADO,

Plaintiff designates

BRONX County as the place of trial

Plaintiff,

The basis of the venue is where the
tort arose

-against-

CITY OF NEW YORK, Individually and in their official capacities as New York City police officers, THERESA LUSTICA, THOMAS ACCOMANDO, and JOHN OR JANE DOE 1-10,
-----X

SUMMONS

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 6, 2019



SIM & DEPAOLA, LLP
BY: Samuel DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 201
Bayside, New York 11361
(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. THERESA LUSTICA
46th Precinct
Shield #1534, Tax ID 956859
2120 Ryer Ave.
Bronx, NY 10457

P.O. THOMAS ACCOMANDO
46th Precinct
Shield #08316, Tax ID 949957
2120 Ryer Ave.
Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JONATHAN ALVARADO,

Index No.

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, Individually and in their official
capacities as New York City police officers, THERESA
LUSTICA, THOMAS ACCOMANDO, and JOHN OR
JANE DOE 1-10,

Defendants.
-----X

Plaintiff, Jonathan Alvarado, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from a November 1, 2018 incident in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Alvarado. Mr. Alvarado was subsequently charged with Criminal Sale and Possession of a Controlled Substance. As a result, Mr. Alvarado was deprived of his liberty and suffered physical and emotional injuries. Mr. Alvarado was unlawfully held in police custody for over fifty-eight (58) hours, until his release on November 3, 2018. Mr. Alvarado was maliciously prosecuted until December 11, 2018, when the Hon. F. Wang dismissed and sealed all criminal charges against him.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff, Jonathan Alvarado (“Mr. Alvarado”), resides at 2396 Morris Ave, Apt. 2F, Bronx, State of New York.
4. The Defendant City of New York (“City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Theresa Lustica (“Lustica”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Lustica was, at the time relevant herein, a Police Officer under Shield No. 1534 in the 46th Precinct, located at 2120 Ryer Ave. Bronx, New York 10457. Defendant Lustica is being sued in her individual and official capacities.
8. Defendant Thomas Accomando (“Accomando”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Accomando was, at the time relevant herein, a Police Officer under Shield No. 08316 in the 46th Precinct, located at

2120 Ryer Ave. Bronx, New York 10457. Defendant Accomando is being sued in his individual and official capacities.

9. At all times relevant Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John or Jane Doe 1 through 10 but is within knowledge of the defendants.
10. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.
11. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
12. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
14. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
15. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On November 1, 2018, at approximately 1:40 p.m., Mr. Alvarado was in the process of buying some food in the vicinity of 2396 Morris Avenue, Apt. 2F, Bronx, NY 10468.

17. Defendants, including Lustica and Accomando, approached Mr. Alvarado without a lawful reason to do so, as he was committing no crimes or violations of the law.
18. Defendants, including Lustica and Accomando, demanded that he put his hands behind his back, handcuffed him and transported him to the 46th Precinct.
19. Mr. Alvarado asked Defendants, including Lustica and Accomando, why he was being placed under arrest numerous times, all of which were ignored.
20. Mr. Alvarado was strip-searched in a bathroom cell by Defendants, including Lustica and Accomando.
21. Mr. Alvarado asked them why he was being strip-searched, but Defendants, including Lustica and Accomando, ignored him once again.
22. Mr. Alvarado was then placed in a cell for many hours, during which time, his multiple requests for food and water were denied or ignored by Defendants, including Lustica and Accomando,
23. Mr. Alvarado was eventually taken to Central Booking, where he remained until his arraignment.
24. Upon seeing the judge, Mr. Alvarado was finally apprised of the charges against him and then released on his own recognizance.
25. Mr. Alvarado was compelled to return court until December 11, 2018, when all criminal charges against him were dismissed and sealed.
26. Mr. Alvarado never committed any crimes or violations of the law.
27. At no point did the Defendants, including Lustica and Accomando, ever observe Mr. Alvarado commit any crime or offense.

28. At no point were the Defendants, including defendants Lustica and Accomando, ever told by any witnesses that Mr. Alvarado committed any crime or violation of the law.
29. The Defendants, including defendant Lustica and Accomando, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Alvarado, as Plaintiff was only ordering food from a local restaurant.
30. Defendant Lustica was Mr. Alvarado's arresting officer and signed the criminal court complaint against him, despite knowing the allegation within to be completely false.
31. Defendant Accomando intentionally fabricated false accounts of his observations to justify an otherwise unlawful arrest, namely that he observed Mr. Alvarado exchange quantities of heroin and crack-cocaine for sums of United States Currency.
32. Defendants, Accomando and Lustica, then forwarded said fabricated false accounts to the District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Alvarado.
33. Defendants, Accomando and Lustica, never possessed probable cause to believe that Mr. Alvarado was guilty of any crime or offense, because they were fully aware that the entirety of the evidence against him was predicated on fabricated and false accounts of defendant Lustica's observations.
34. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause and have failed to provide adequate training in the identification of probable cause or reasonable suspicion.

35. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest Plaintiff, as Plaintiff was merely attempting to order food.
36. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of defendants.
37. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Alvarado.
38. At all times relevant hereto, defendants, including defendant Lustica and Accomando, acted maliciously and with intent to injure Plaintiff.
39. At all times relevant hereto, defendants, including defendant Lustica and Accomando, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
40. At all times relevant hereto, defendants, including defendants Lustica and Accomando, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.

41. As a direct and proximate result of the acts of defendants, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

42. The above paragraphs are here incorporated by reference as though fully set forth.
43. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
44. Plaintiff was conscious of his confinement.
45. Plaintiff did not consent to his confinement.
46. Plaintiff's arrest and false imprisonment was not otherwise privileged.
47. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
48. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
49. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth.
51. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
52. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
53. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
54. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
55. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

56. The above paragraphs are here incorporated by reference as though fully set forth.
57. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
58. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
59. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
60. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

61. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

62. The above paragraphs are here incorporated by reference as though fully set forth.
63. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
64. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without consent.
65. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
66. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

67. The above paragraphs are here incorporated by reference as though fully set forth.
68. Defendants initiated the prosecution against Plaintiff.
69. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
70. Defendants acted with malice.
71. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

72. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
73. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
74. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

75. The above paragraphs are here incorporated by reference as though fully set forth.
76. Defendants initiated the prosecution against Plaintiff.
77. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
78. Defendants acted with malice.
79. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.
80. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
81. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
82. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

83. The above paragraphs are here incorporated by reference as though fully set forth.
84. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to prevent the termination of their employment due to their unlawful acts.
85. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
86. Defendants intended to inflict substantial harm upon Plaintiff.
87. Defendants acts were in the furtherance of their own self-interests and committed so that Defendants would avoid termination and any other negative consequences that would have rightfully resulted from their illegal acts.
88. Defendants abused the legal process to conceal their unlawful acts against Plaintiff and received credit for an otherwise invalid and illegal arrest.
89. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
90. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
91. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

92. The above paragraphs are here incorporated by reference as though fully set forth.
93. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to prevent the termination of their employment due to their unlawful acts.

94. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
95. Defendants intended to inflict substantial harm upon Plaintiff.
96. Defendants acts were in the furtherance of their own self-interests and committed so that Defendants would avoid termination and any other negative consequences that would have rightfully resulted from their illegal acts.
97. Defendants abused the legal process to conceal their unlawful acts against Plaintiff and received credit for an otherwise invalid and illegal arrest.
98. Defendants' actions deprived Plaintiff of their rights to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
99. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

100. The above paragraphs are here incorporated by reference as though fully set forth.
101. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
102. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
103. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
104. By reason of the above, the amount of damages sought on this cause of action exceeds the

jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

- 105. The above paragraphs are here incorporated by reference as though fully set forth.
- 106. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
- 107. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
- 108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 109. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 110. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

- 111. The above paragraphs are here incorporated by reference as though fully set forth.
- 112. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
- 113. Defendant City breached that duty of care.
- 114. Defendant City placed defendants in a position where they could inflict foreseeable harm.

115. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
116. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
117. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
118. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

119. The above paragraphs are here incorporated by reference as though fully set forth.
120. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.
121. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
122. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.
123. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant

City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

124. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.
125. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
126. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

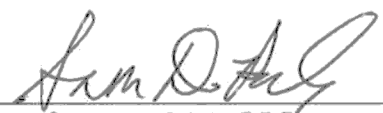
WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action

Dated: Bayside, New York
June 6, 2019



SIM & DEPAOLA, LLP
By: Samuel C. DePaola
Attorneys for Plaintiff
4240 Bell Blvd., Suite 201
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 6, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JONATHAN ALVARADO,

Plaintiff,

-against-

CITY OF NEW YORK, Individually and in their official capacities as New York City police officers, THERESA LUSTICA, THOMAS ACCOMANDO, and JOHN OR JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: SAMUEL C. DEPAOLA
Attorneys for Plaintiff(s)
42-40 Bell Boulevard, Ste. 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for